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Case Number: 24TRCV00745 Hearing Date: September 16, 2026 Dept: M

LOS ANGELES SUPERIOR COURT – SOUTHWEST DISTRICT

Honorable Amy N. Carter

Department M

Wednesday – September 16, 2026

Calendar No.

PROCEEDINGS

Rita

Hoady v. American Honda Motor Company, Inc., et al.

24TRCV00745

1. American Honda Motor Company, Inc.'s Motion for
Summary Judgment, or, in the Alternative, Summary Adjudication

TENTATIVE RULING

American Honda Motor Company, Inc.'s Motion for
Summary Judgment, or, in the Alternative, Summary Adjudication is denied.

Background

Plaintiff filed the Complaint on March 1, 2024. Plaintiff

filed the First Amended Complaint on August 29, 2024. Plaintiff alleges the following facts. Plaintiff alleges that her 2017 Honda Pilot suffers from various defects including electrical defects, engine defects, transmission defects, and other defects and non-conformities. Plaintiff set forth causes of action under the Song-Beverly Act: 1. Violation of Civ. Code 1793.2(d); 2. Violation of Civ. Code 1793.2(b); 3. Violation of Civ. Code 1793.2(a)(3); 4. Breach of the Implied Warranty of Merchantability.

Request
for Judicial Notice

Plaintiff's
request for judicial notice is granted pursuant to Evidence Code § 452(h).

Objections

Plaintiff's
objections 1, 2, 4, and 6 to 10 to the declaration of Stephanie M. Atkinson are sustained. Objections 3 and 5 are overruled.

Defendant's
objections 1 to 3 to the declaration of Rita Hoady are overruled.

Defendant's
objections 4 to 5 are overruled. Defendant did not object to evidence but instead to matters stated in Plaintiff's separate statement of facts.

Motion for Summary Judgment/Adjudication

The purpose
of a motion for summary judgment or summary adjudication "is to provide courts with a mechanism to cut through the parties' pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute." (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843.) "Code of Civil Procedure section 437c, subdivision (c), requires the trial judge to grant summary judgment if all the evidence submitted, and 'all inferences reasonably deducible from the evidence' and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Adler v. Manor Healthcare Corp. (1992) 7 Cal. App. 4th 1110, 1119.)

“On a motion

for summary judgment, the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact.” (Scalf v. D. B. Log Homes, Inc. (2005) 128 Cal. App. 4th 1510, 1519.) A defendant moving for summary judgment or summary adjudication “has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action . . . cannot be established, or that there is a complete defense to the cause of action.” CCP §

437c(p)(2). “Once the defendant . . .

has met that burden, the burden shifts to the plaintiff . . . to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” CCP § 437c(p)(2).

“If the plaintiff cannot do so, summary judgment should be granted.” Avivi v. Centro Medico Urgente Medical Center (2008) 159 Cal. App. 4th 463, 467.

“A plaintiff

or cross-complainant has met his or her burden of showing that there is no defense to a cause of action if that party has proved each element of the cause of action entitling the party to judgment on the cause of action. Once the plaintiff or cross-complainant has met that burden, the burden shifts to the defendant or cross-defendant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” Code Civ. Proc., § 437c(p)(1).

“When

deciding whether to grant summary judgment, the court must consider all of the evidence set forth in the papers (except evidence to which the court has sustained an objection), as well as all reasonable inferences that may be drawn from that evidence, in the light most favorable to the party opposing summary judgment.” (Avivi, 159 Cal.App.4th at 467; CCP § 437c(c).)

Defendant’s

motion is titled a motion for summary judgment or in the alternative summary adjudication. However, the notice of motion only states as follows: Defendant moves “pursuant to California Code of Civil Procedure section 437c, for an order granting adjudication, as follows: 1. All of Plaintiff’s causes of action fail as a matter of law because they are time barred. 2. The statute of limitations has not been tolled by any tolling doctrine.” (Notice of Motion, p.

2, lines 5-9). Thus, the notice is defective as it appears to only seek summary adjudication rather than summary judgment.

Defendant's separate

statement of facts is also defective because the separate statement fails to comply with Cal. Rules of Court, Rule 3.1350(b). "If made in the alternative, a motion for summary adjudication may make reference to and depend on the same evidence submitted in support of the summary judgment motion. If summary adjudication is sought, whether separately or as an alternative to the motion for summary judgment, the specific cause of action, affirmative defense, claims for damages, or issues of duty must be stated specifically in the notice of motion and be repeated, verbatim, in the separate statement of undisputed material facts." *Id.* The separate statement does not match verbatim with the issues specifically set forth in the notice of motion.

The Reply

papers are also defective as Defendant improperly included a separate statement and additional evidence. CCP § 437c(b)(4). The Court did not consider these documents.

The Court

also notes that Defendant's Exhibit 4 is not what the declarant claims it to be. This error is acknowledged by Defendant.

First Cause of Action for Violation of Civ. Code
1793.2(d)

Second Cause of Action for Violation of Civ. Code
1793.2(b)

Third Cause of Action for Violation of Civ. Code
1793.2(a)(3)

Fourth Cause of Action for Breach of the Implied
Warranty of Merchantability

Civ. Code, § 1793.2 states, in relevant part:

(a) Every manufacturer of consumer goods sold in this
state and for which the manufacturer has made an express warranty shall:

(3) Make available to authorized service and repair facilities sufficient service literature and replacement parts to effect repairs during the express warranty period.

(b) Where those service and repair facilities are maintained in this state and service or repair of the goods is necessary because they do not conform with the applicable express warranties, service and repair shall be commenced within a reasonable time by the manufacturer or its representative in this state. Unless the buyer agrees in writing to the contrary, the goods shall be serviced or repaired so as to conform to the applicable warranties within 30 days. Delay caused by conditions beyond the control of the manufacturer or its representatives shall serve to extend this 30-day requirement. Where delay arises, conforming goods shall be tendered as soon as possible following termination of the condition giving rise to the delay.

(d)(1) Except as provided in paragraph (2), if the manufacturer or its representative in this state does not service or repair the goods to conform to the applicable express warranties after a reasonable number of attempts, the manufacturer shall either replace the goods or reimburse the buyer in an amount equal to the purchase price paid by the buyer, less that amount directly attributable to use by the buyer prior to the discovery of the nonconformity. However, if the manufacturer or its representative in this state does not service or repair a travel trailer or a portion of a motor home designed, used, or maintained for human habitation, to conform to the applicable express warranties after a reasonable number of attempts, the buyer shall be free to elect reimbursement in lieu of replacement, and in no event shall the buyer be required by the manufacturer to accept a replacement travel trailer or motor home.

(2) If the manufacturer or its representative in this state is unable to service or repair a new motor vehicle, as that term is defined in paragraph (2) of subdivision (e) of Section 1793.22, to conform to the applicable express warranties after a reasonable number of attempts, the manufacturer shall either promptly replace the new motor vehicle in accordance with subparagraph (A) or promptly make restitution to the buyer in accordance with subparagraph (B). However, the buyer shall be free to elect restitution in lieu of replacement, and in no event shall the buyer be required by the manufacturer to accept a replacement vehicle.

(A) In the case of replacement, the manufacturer shall replace the buyer's vehicle with a new motor vehicle substantially identical to the vehicle replaced. The replacement vehicle shall be accompanied by all express and implied warranties that normally accompany new motor vehicles of that specific kind. The manufacturer also shall pay for, or to, the buyer the amount of any sales or use tax, license fees, registration fees, and other official fees which the buyer is obligated to pay in connection with the replacement, plus any incidental damages to which the buyer is entitled under Section 1794, including, but not limited to, reasonable repair, towing, and rental car costs actually incurred by the buyer.

(B) In the case of restitution, the manufacturer shall make restitution in an amount equal to the actual price paid or payable by the buyer, including any charges for transportation and manufacturer-installed options, but excluding nonmanufacturer items installed by a dealer or the buyer, and including any collateral charges such as sales or use tax, license fees, registration fees, and other official fees, plus any incidental damages to which the buyer is entitled under Section 1794, including, but not limited to, reasonable repair, towing, and rental car costs actually incurred by the buyer.

(C) When the manufacturer replaces the new motor vehicle pursuant to subparagraph (A), the buyer shall only be liable to pay the manufacturer an amount directly attributable to use by the buyer of the replaced vehicle prior to the time the buyer first delivered the vehicle to the manufacturer or distributor, or its authorized service and repair facility for correction of the problem that gave rise to the nonconformity. When restitution is made pursuant to subparagraph (B), the amount to be paid by the manufacturer to the buyer may be reduced by the manufacturer by that amount directly attributable to use by the buyer prior to the time the buyer first delivered the vehicle to the manufacturer or distributor, or its authorized service and repair facility for correction of the problem that gave rise to the nonconformity. The amount directly attributable to use by the buyer shall be determined by multiplying the actual price of the new motor vehicle paid or payable by the buyer, including any charges for transportation and manufacturer-installed options, by a fraction having as its denominator 120,000 and having as its numerator the number of miles traveled by the new motor vehicle prior to the time the buyer first delivered the vehicle to the manufacturer or distributor, or its authorized service and repair facility for

correction of the problem that gave rise to the nonconformity. Nothing in this paragraph shall in any way limit the rights or remedies available to the buyer under any other law.

(D) Pursuant to Section 1795.4, a buyer of a new motor vehicle shall also include a lessee of a new motor vehicle.”

Civ. Code, § 1791.1 states:

“As used in this chapter:

(a) “Implied warranty of merchantability” or “implied warranty that goods are merchantable” means that the consumer goods meet each of the following:

(1) Pass without objection in the trade under the contract description.

(2) Are fit for the ordinary purposes for which such goods are used.

(3) Are adequately contained, packaged, and labeled.

(4) Conform to the promises or affirmations of fact made on the container or label.

(b) “Implied warranty of fitness” means (1) that when the retailer, distributor, or manufacturer has reason to know any particular purpose for which the consumer goods are required, and further, that the buyer is relying on the skill and judgment of the seller to select and furnish suitable goods, then there is an implied warranty that the goods shall be fit for such purpose and (2) that when there is a sale of an assistive device sold at retail in this state, then there is an implied warranty by the retailer that the device is specifically fit for the particular needs of the buyer.

(c) The duration of the implied warranty of merchantability and where present the implied warranty of fitness shall be coextensive in duration with an express warranty which accompanies the consumer goods, provided the duration of the express warranty is reasonable; but in no event shall such implied warranty have a duration of less than 60 days nor more

than one year following the sale of new consumer goods to a retail buyer. Where no duration for an express warranty is stated with respect to consumer goods, or parts thereof, the duration of the implied warranty shall be the maximum period prescribed above.

(d) Any buyer of consumer goods injured by a breach of the implied warranty of merchantability and where applicable by a breach of the implied warranty of fitness has the remedies provided in Chapter 6 (commencing with Section 2601) and Chapter 7 (commencing with Section 2701) of Division 2 of the Commercial Code, and, in any action brought under such provisions, Section 1794 of this chapter shall apply."

Cal. U. Com. Code, § 2725 states, in relevant part:

"(1) An action for breach of any contract for sale must be commenced within four years after the cause of action has accrued. By the original agreement the parties may reduce the period of limitation to not less than one year but may not extend it.

(2) A cause of action accrues when the breach occurs, regardless of the aggrieved party's lack of knowledge of the breach. A breach of warranty occurs when tender of delivery is made, except that where a warranty explicitly extends to future performance of the goods and discovery of the breach must await the time of such performance the cause of action accrues when the breach is or should have been discovered."

"We [. . .] apply the discovery rule of California Uniform Commercial Code section 2725, subdivision (2). The statutory presumption aids a car owner in establishing when he or she has made a reasonable number of attempts to repair the vehicle. But it does not preclude an earlier date. [. . .] [¶] This conclusion is consistent with the policy of the Act requiring buyers to give the seller of a "lemon" automobile a reasonable opportunity to repair it. If we adopted the position urged by respondent and held that a cause of action for breach of express warranty accrues on tender of delivery, before the seller has an opportunity to repair any defects, we would undermine the legislative purpose that the parties attempt to resolve any deficiencies in performance before resorting to the remedies provided in the Act. In light of our conclusion that actions for breach of warranty under the Act and under the California Uniform Commercial Code are governed by the same statute of limitations, the same rule of accrual must

apply to both causes of action. Application of California Uniform Commercial Code section 2725, subdivision (2) provides this consistency while meeting the policies of the Act.” *Krieger v. Nick Alexander Imports, Inc.* (1991) 234 Cal.App.3d 205, 218–219. The duration period for breach of the implied warranty of merchantability matches that of the other claims under the Song-Beverly Act. *Mexia v. Rinker Boat Co.* (2009) 174 Cal.App.4th 1297, 1304.

Defendant has met its initial burden of showing that a complete defense exists to the causes of action. CCP § 437c(p)(2). Defendant argues that Plaintiff purchased the subject vehicle in 2017. Defendant contends that the last warranty service occurred in 2018 and Plaintiff did not bring her vehicle into service again until 2021. Thus, Defendant argues that the cause of action accrued in January 2018, and, therefore, the Complaint was required to be filed in January 2022. The Complaint was filed on March 1, 2024. Thus, Defendant argues that all of Plaintiff’s causes of action are barred by the statute of limitations. However, the Court notes that many of the attached exhibits are supported only by the declaration of Defendant’s counsel Stephanie M. Atkinson. Declarant has failed to establish proper personal knowledge or foundation for any of the exhibits other than the excerpts of the deposition of Plaintiff. But, the deposition of Plaintiff does indicate that she did take her vehicle in for service in 2017 and 2018 as contended by Defendant.

Plaintiff presented evidence to meet her burden to provide specific facts to show that “a triable issue of one or more material facts exists as to the causes of action or a defense thereto.” CCP § 437c(p)(2). Plaintiff submitted competent evidence that she could not have discovered the breach until October 2021 at the earliest which would render the Complaint filed in 2024 timely. (Plaintiff’s Additional Material Facts and Supporting Evidence, 3-14). Plaintiff has, at a minimum, presented sufficient evidence to show the existence of a triable issue of material fact as to the accrual date for purposes of the statute of limitations.

While the visits to the dealership in 2017 and 2018 apparently demonstrated no issues, according to the repair notes conducted on those dates, the 2021 visits did demonstrate issues with the transmission. Eventually, in 2023, Defendant issued its own service bulletin - 23-078. Defendant informed the owners of 2017-2018 Pilots that the vehicles equipped with 6AT transmissions were not manufactured to proper specifications and that the warranty on the torque converter was being extended to 8 years or 150,000 miles from the original purchase. (*Id.*) Whether Plaintiff should have discovered the

breach earlier than 2021 is a triable issue of material fact. A jury could certainly find that the repair visits made in 2017 or 2018 would not trigger a reasonable suspicion of wrongdoing on the part of Defendant especially considering Defendant's affirmative representations that there was nothing wrong with the vehicle. The later 2023 service bulletin appears to demonstrate that those representations made in 2017 and 2018 may not have been correct. When the Plaintiff encountered additional issues in 2021 and 2022 which were apparently more significant than those she encountered in 2017 and 2018, a trier of fact could reasonably determine that Plaintiff should have known of the existence of the cause of action on the later dates rather than in 2017 and 2018.

Thus, for the foregoing reasons, Defendant's Motion for Summary Judgment, or, in the Alternative, Summary Adjudication is denied.

Plaintiff is ordered to give notice of this ruling.